



[Western Australia](#)

Petroleum (Submerged Lands) Registration Fees Act 1982

[Compare between:](#)

[\[13 Feb 2004, 02-a0-04\]](#) and [\[28 Oct 2010, 02-b0-01\]](#)

Petroleum (Submerged Lands) Registration Fees Act 1982

**An Act to provide for the payment of fees in respect of the
registration of certain instruments under the *Petroleum (Submerged
Lands) Act 1982*.**

1. Short title

This Act may be cited as the *Petroleum (Submerged Lands)
Registration Fees Act 1982* ¹.

2. Commencement

- (1) This Act shall come into operation on the day on which the
Petroleum (Submerged Lands) Act 1982 comes into operation ¹.
- (2) The Minister shall as soon as is practicable after the
commencement of this Act cause notice of the commencement
to be published in the *Gazette*.

3. Incorporation

This Act is incorporated, and shall be read as one, with the
Petroleum (Submerged Lands) Act 1982 (in this Act called
“the principal Act”).

4. Imposition of registration fees

- (1) In this section, “title” means a permit, lease, licence, pipeline
licence or access authority.
- (2) Subject to this section, there is payable to the Minister in respect
of an entry in the register of a memorandum of the transfer of a

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title under section 78 of the *Petroleum (Submerged Lands)*
Act 1982 a fee at the rate of 1.5% of —

(a) the value of the consideration for the transfer; or

(b) the value of the title transferred,

whichever is the greater or, if the amount of that fee is less than
the prescribed amount, a fee of the prescribed amount.

(3) Where —

(a) a fee imposed by this Act, as in force at any time, in
respect of an entry of approval of an instrument or
dealing, being a dealing or instrument pursuant to which
the transfer of a title is agreed to, has been paid; and

(b) but for this subsection, the amount of the fee imposed by
subsection (2) in respect of the entry of a memorandum
of the transfer of the title, being a transfer executed for
the purpose of giving effect to the dealing or instrument
referred to in paragraph (a), would be greater than the
prescribed amount,

the amount of the fee imposed by subsection (2) in respect of
the entry of the memorandum of the transfer is the prescribed
amount.

(4) Where —

(a) the parties to a transfer of a title lodged for approval
under section 78 of the *Petroleum (Submerged Lands)*
Act 1982 satisfy the Minister that —

(i) they are related bodies corporate within the
meaning of the *Corporations Act 2001* of the
Commonwealth;

(ii) the transfer was executed solely for the purpose
of a reorganization of the corporations concerned
or any of them or solely for the purpose of
securing the better administration of the
corporations concerned or any of them; and

(iii) the transfer was not executed substantially for the purpose of avoiding or reducing the registration fees that would, but for this subsection, be payable under subsection (2) in respect of the entry of a memorandum of the transfer;

and

(b) but for this subsection, the amount of the fee imposed by subsection (2) in respect of the entry of the memorandum of the transfer of the title would be more than the prescribed amount,

the amount of the fee imposed by subsection (2) in respect of the entry of the memorandum of the transfer is the prescribed amount.

(5) Subject to this section, there is payable to the Minister in respect of an entry in the register of the approval of a dealing under section 81 of the *Petroleum (Submerged Lands) Act 1982* a fee at the rate of 1.5% of —

(a) the value of the consideration for the dealing or, if the Minister approves the dealing in relation to another title or titles, an amount equal to the value of the consideration for the dealing divided by the number of titles in relation to which the dealing is approved; or

(b) in a case where —

(i) the value of the interest in a title is greater than the amount applicable under paragraph (a);

(ii) the dealing has an effect of the kind referred to in section 81(1)(a), (b) or (d) of the *Petroleum (Submerged Lands) Act 1982*; and

(iii) the Minister is satisfied that the dealing was not made pursuant to another dealing or an instrument, being a dealing or instrument that relates to that title and in respect of an entry of approval of which a fee has been paid under this Act, as in force at any time,

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the value of the interest.

(6) Where —

(a) but for this subsection, the amount of the fee imposed by subsection (5) in relation to an entry of approval of a dealing would be less than the prescribed amount; or

(b) an approval under section 81 of the *Petroleum (Submerged Lands) Act 1982* is given in respect of a dealing that is a dealing to which that section of that Act applies by reason only that the dealing creates, varies or terminates a charge over some or all of the assets of a body corporate,

the amount of the fee imposed by subsection (5) in respect of the entry of that approval is the prescribed amount.

(7) Where —

(a) the parties to a dealing lodged for approval under section 81 of the *Petroleum (Submerged Lands) Act 1982* satisfy the Minister that —

(i) they are related bodies corporate within the meaning of the *Corporations Act 2001* of the Commonwealth;

(ii) the dealing was entered into solely for the purpose of a reorganization of the corporations concerned or any of them or solely for the purpose of securing the better administration of the corporations concerned or any of them; and

(iii) the dealing was not entered into substantially for the purpose of avoiding or reducing the registration fees that would, but for this subsection, be payable under subsection (5) in respect of the entry of approval of the dealing;

and

(b) but for this subsection, the amount of the fee imposed by subsection (5) in relation to the entry of approval of the dealing would be more than the prescribed amount,

the amount of the fee imposed by subsection (5) in respect of the entry of approval of that dealing is the prescribed amount.

(8) For the purposes of calculating the amount of the fee imposed by subsection (5) in respect of an entry of approval of a dealing, the value, as determined by the Minister, of any exploration works to be carried out pursuant to the dealing, being works that were, at the time when the application for approval of the dealing was lodged, required or permitted to be carried out by or under the relevant title, shall be deducted from the value of the consideration for the dealing or from the value of the interest in the relevant licence, as the case requires.

[Section 4 inserted by No. 13 of 1990 s. 4; amended by No. 20 of 2003 s. 39.]

4A. Regulations

The Governor may make regulations prescribing all matters that are required or permitted by this Act to be prescribed, or are necessary or convenient to be prescribed for giving effect to the purposes of this Act.

[Section 4A inserted by No. 13 of 1990 s. 5.]

[5. Omitted under the Reprints Act 1984 s. 7(4)(f).]

Notes

¹ This is a compilation of the *Petroleum (Submerged Lands) Registration Fees Act 1982* and includes the amendments made by the other written laws referred to in the following table ^{1a}. The table also contains information about any reprint.

Compilation table

<u>Short title</u>	<u>Version</u>	<u>Number and year</u>	<u>Date</u>	<u>Publicis</u>
<i>Petroleum (Submerged Lands) Registration Fees Act 1982</i> ¹	34 of 1982	27	1 May 1982	2018
<i>Petroleum (Submerged Lands) Registration Fees Amendment Act 1990</i> ²		13 of 1990		
Reprint of the <i>Petroleum (Submerged Lands) Registration Fees Act 1982</i> as at 18 Mar 1992 (includes amendments listed above)				
<i>Corporations (Consequential Amendments) Act (No. 2) 2003</i> Pt. 19		20 of 2003	23 Apr 2003	1
Reprint 2: The <i>Petroleum (Submerged Lands) Registration Fees Act 1982</i> as at 13 Feb 2004 (includes amendments listed above)				

^{1a} On the date as at which this compilation was prepared, provisions referred to in the following table had not come into operation and were therefore not included in this compilation. For the text of the provisions see the endnotes referred to in the table.

Provisions that have not come into operation

<u>Short title</u>	<u>Number and year</u>	<u>Assent</u>	<u>Commencement</u>
<i>Petroleum and Energy Legislation Amendment Act 2010</i> s. 185 ³	42 of 2010	28 Oct 2010	To be proclaimed (see s. 2(b))

² The *Petroleum (Submerged Lands) Registration Fees Amendment Act 1990* s. 6 reads as follows:

“

6. Application of principal Act

The principal Act continues to apply in relation to transfers to which section 78 of the *Petroleum (Submerged Lands) Act 1982*

continues to apply by virtue of the operation of section 201(3) of the Acts Amendment (Petroleum) Act 1990.

”
—

³ On the date as at which this compilation was prepared, the Petroleum and Energy Legislation Amendment Act 2010 s. 185 had not come into operation. It reads as follows:

185. Petroleum (Submerged Lands) Registration Fees Act 1982 amended

- (1) This section amends the Petroleum (Submerged Lands) Registration Fees Act 1982.
- (2) In section 4(1) before “pipeline licence” insert:

infrastructure licence,

~~ST. OLIVER PLUNKETT’S P.S. FORKHILL~~
~~PRIVACY NOTICE~~
~~For Those Employed to Teach at a Maintained~~
~~School~~

~~ABOUT US~~

~~St. Oliver Plunkett’s P.S. is a data controller of the personal information you provide to us as an individual employed at the school. This means that the school will determine the purposes for which and the manner in which any personal information relating to those employed to teach at the School is to be processed.~~

~~We are required under the General Data Protection Regulation (GDPR) to notify you of the information contained in this privacy notice.~~

Petroleum (Submerged Lands) Registration Fees Act 1982

This privacy notice describes how we collect and use personal information about you during and after your working relationship with us, in accordance with the GDPR.

It applies to all employees. This notice does not form part of any contract of employment or other contract to provide services. We may update this notice at any time but if we do so, we will provide you with an updated copy of this notice as soon as reasonably practicable.

It is important that you read and retain this notice, together with any other privacy notice we may provide on specific occasions when we are collecting or processing personal information about you, so that you are aware of how and why we are using such information and what your rights are under the GDPR.

If you have any questions about this privacy notice or how we handle personal information, please contact the Principal who will deal with your query. The Principal can be contacted on Tel: 028 30888374, Email: kwoods376@e2kni.net.

Our Data Protection Officer is the Education Authority and it monitors the school's data protection procedures to ensure they meet the standards and requirements of the GDPR. Please contact the Education Authority Data Protection Officer at 40 Academy Street, Belfast, BT1 2NQ, Tel: 028 82411300.

You have the right to make a complaint at any time to the Information Commissioner's Office (ICO), the UK supervisory authority for data protection issues. The ICO's details are as follows:

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~~FOR THOSE EMPLOYED TO TEACH AT A MAINTAINED SCHOOL REGARDING USE OF
THEIR PERSONAL INFORMATION~~

~~Version: 1.0 (May 2018)~~

~~The Information Commissioner's Office—Northern Ireland~~

~~3rd Floor
14 Cromac Place,
Belfast
BT7 2JB~~

~~Telephone: 028 9027 8757 / 0303 123 1114~~

~~Email: ni@ico.org.uk~~

~~HOW IS YOUR PERSONAL INFORMATION COLLECTED?~~

~~We collect personal information about employees through the application and recruitment process, either directly from candidates or sometimes from an employment agency or background check provider. We may sometimes collect additional information from third parties including former employers or background check agencies.~~

~~We will collect additional personal information in the course of job-related activities throughout the period of you working with us.~~

~~If you fail to provide certain information when requested, we may not be able to comply with our legal obligations (such as to ensure the health and safety of our employees).~~

~~WHAT PERSONAL INFORMATION DO WE COLLECT, STORE AND USE ABOUT THOSE EMPLOYED TO TEACH AT ST. OLIVER PLUNKETT'S P.S. FORKHILL.~~

~~We will collect, store and use the following categories of personal information about school employees:~~

- ~~• personal information (such as name, employee or teacher number, national insurance number, next of kin details and emergency contact~~

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~~information, photographs, bank account details and tax status information)~~

- ~~• special categories of data including characteristics information (such as gender, age, ethnic group, trade union membership, information regarding your health and AccessNI Enhanced Disclosure application and outcome)~~
- ~~• recruitment information (such as copies of references, information included in a CV or letter as part of the application process)~~
- ~~• contract information (such as start dates, hours worked, post, roles and salary information, annual leave, leaving date and your reasons for leaving)~~
- ~~• performance information (including training records and professional memberships)~~
- ~~• disciplinary and grievance information~~
- ~~• work absence information (such as number of absences and reasons, including in respect of parental leave)~~
- ~~• qualifications (and, where relevant, subjects taught)~~
- ~~• CCTV footage captured in school and other information obtained through electronic means (such as swipe card records)~~
- ~~• information about your use of our information and communications systems~~

~~WHY DO WE COLLECT AND USE THIS INFORMATION?~~

~~St. Oliver Plunkett's P.S. collects and uses your personal information primarily to allow us to perform our contract with you. For example:~~

- ~~• Making a decision about your recruitment or appointment~~
- ~~• Determining the terms on which you work for us~~
- ~~• checking you are legally entitled to work in the UK~~

FOR THOSE EMPLOYED TO TEACH AT A MAINTAINED SCHOOL REGARDING USE OF
THEIR PERSONAL INFORMATION

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- ~~[paying you and, if you are an employee or deemed employee for tax purposes, deducting tax and National Insurance contributions (NICs)]~~
- ~~[enrolling you in a pension arrangement in accordance with our statutory automatic enrolment duties]~~
- ~~administering the contract of employment CCMS has entered into with you~~
- ~~business management and planning, including accounting and auditing~~
- ~~conducting performance reviews, managing performance and determining performance requirements~~
- ~~making decisions about salary reviews and compensation~~
- ~~assessing qualifications for a particular job or task, including decisions about promotions~~
- ~~gathering evidence for possible grievance or disciplinary hearings~~
- ~~making decisions about your continued employment or engagement~~
- ~~making arrangements for the termination of our working relationship~~
- ~~education, training and development requirements~~
- ~~dealing with legal disputes involving you, or other employees, workers and contractors, including accidents at work~~
- ~~ascertaining your fitness to work~~
- ~~managing sickness absence~~
- ~~complying with health and safety obligations~~
- ~~to monitor your use of our information and communication systems to ensure compliance with our IT policies~~
- ~~to ensure network and information security, including preventing unauthorised access to our computer and electronic communications systems and preventing malicious software distribution~~
- ~~to conduct data analytics studies to review and better understand employee retention and attrition rates~~
- ~~equal opportunities monitoring~~

~~Some of the above grounds for processing will overlap and there may be several grounds which justify our use of your personal information.~~

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We have a legal right to collect and use personal information relating to our staff, for example:

- to enable the development of a comprehensive picture of our workforce and how it is deployed
- to inform the development of recruitment and retention policies
- to enable individuals to be paid
- to administer school property
- to maintain our own accounts and records
- to carry out fundraising
- to support staff training
- to provide appropriate pastoral care
- to assess the quality of our operations
- to comply with the law regarding data sharing

We may also collect and use your personal information in order to meet legal requirements set out in the General Data Protection Regulation and UK law, including:

- Education and Libraries (NI) Order 1986
- Education Reform (NI) Order 1989
- Education and Libraries (NI) Order 1993
- Education (NI) Order 1996
- Education (NI) Order 1997
- Education (NI) Order 1998
- Education and Libraries (NI) Order 2003
- Special Educational Needs and Disability (NI) Order 2005
- Education (NI) Order 2006
- Education Act (NI) 2014

CONSENT

FOR THOSE EMPLOYED TO TEACH AT A MAINTAINED SCHOOL REGARDING USE OF
THEIR PERSONAL INFORMATION

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Whilst the majority of the personal information you provide to the school is required for us to comply with our legal obligations, some of that information is provided on a voluntary basis. When collecting data, the school will inform you whether you are required to provide this data or if your consent is needed. Where consent is required, the school will provide you with specific and explicit information with regards to the reasons the data is being collected and how the data will be used.

You have the right to withdraw your consent for that specific processing at any time. To withdraw your consent, please contact the Principal Tel: 028 30888374, Email: kwoods376@e2kni.net,

Once we have received notification that you have withdrawn your consent, we will no longer process your information for the purpose or you originally agreed to, unless we have another legitimate basis for doing so in law.

HOW LONG IS YOUR PERSONAL INFORMATION STORED FOR?

Personal information relating to the school workforce at St. Oliver Plunkett's P.S. is stored in line with the Department of Education Document Retention and Disposal Policy which can be found at <https://www.education-ni.gov.uk/publications/disposal-records-schedule>. This will give you more information about how long we keep personal information.

In accordance with the General Data Protection Regulations, the school does not store personal information indefinitely; data is only stored for as long as is necessary to complete the task for which it was originally collected including for the purposes of satisfying any legal, accounting, or reporting requirements.

To determine the appropriate retention period for personal information, we consider the amount, nature, and sensitivity of the personal information, the potential risk of harm from unauthorised use or disclosure of your personal information, the purposes for which we process your personal information and whether we can achieve those purposes through other means, and the applicable legal requirements.

In some circumstances we may anonymise your personal information so that it can no longer be associated with you, in which case we may use such information without further notice to you. Once you are no longer an employee at the School we will retain and securely destroy your personal information in accordance with the Department of Education Document Retention and Disposal Policy.

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~~**WHO WE SHARE SCHOOL WORKFORCE INFORMATION WITH**~~

~~We may have to share your personal information with third parties, including
third party service providers and other bodies such as:~~

- ~~• Education Authority~~
- ~~• Council for Catholic Maintained Schools~~
- ~~• The Department of Education~~
- ~~• General Teaching Council for Northern Ireland~~
- ~~• Northern Ireland Council for Curriculum Examinations and Assessments~~
- ~~• [Education Training Inspectorate]~~
- ~~• [The Board of Governors]~~
- ~~• [PSNI]~~
- ~~• Information Commissioner's Office~~

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~~DATA SECURITY~~

~~We have put in place appropriate security measures to prevent personal information from being accidentally lost, used or accessed in an unauthorised way, altered or disclosed. In addition, we limit access to your personal information to those employees, agents, contractors and other third parties who have a need to know. They will only process personal information on our instructions and they are subject to a duty of confidentiality.~~

~~We have put in place procedures to deal with any suspected data security breach and will notify you and any applicable regulator (currently the Information Commissioner's Office) of a suspected breach where we are legally required to do so.~~

~~WHY WE SHARE SCHOOL WORKFORCE INFORMATION~~

~~We will share your personal information with third parties where required by law or where it is necessary to administer the working relationship with you or where we have another legitimate interest in doing so.~~

~~To be granted access to school workforce information, organisations must comply with its strict terms and conditions covering the confidentiality and handling of the data, security arrangements and retention and use of the data.~~

~~TRANSFERRING INFORMATION OUTSIDE THE EU~~

~~We will not transfer the personal information we collect about you to any country outside the EU without telling you in advance that we intend to do so and what steps we have taken to ensure adequate protection for your personal information in those circumstances.~~

~~YOUR DUTY TO INFORM US OF CHANGES~~

~~It is important that the personal information we hold about you is accurate and current. Please keep us informed if your personal information changes during your working relationship with us.~~

~~FOR THOSE EMPLOYED TO TEACH AT A MAINTAINED SCHOOL REGARDING USE OF
THEIR PERSONAL INFORMATION~~

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~~WHAT ARE YOUR RIGHTS?~~

~~Under GDPR, members of the school workforce have the right to request access to information about them that we hold. To make a request for your personal information, contact the Principal Tel: 028 30888374, Email: kwoods376@e2kni.net,~~

~~We may need to request specific information from you to help us confirm your identity and ensure your right to access the information (or to exercise any of your other rights). This is another appropriate security measure to ensure that personal information is not disclosed to any person who has no right to receive it.~~

~~You also have the right to:~~

- ~~• **Request access** to personal information (commonly known as a "data subject access request"). This enables you to receive a copy of the personal information we hold about you and to check that we are lawfully processing it. You will not have to pay a fee to access your personal information (or to exercise any of the other rights). However, we may charge a reasonable fee if your request for access is clearly unfounded or excessive. Alternatively, we may refuse to comply with the request in such circumstances.~~
- ~~• **Request correction** of the personal information that we hold about you. This enables you to have any incomplete or inaccurate information we hold about you corrected.~~
- ~~• **Request erasure** of your personal information. This enables you to ask us to delete or remove personal information where there is no good reason for us continuing to process it. You also have the right to ask us to delete or remove your personal information where you have exercised your right to object to processing (see below).~~

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- ~~Object to processing~~ of your personal information where we are relying on a legitimate interest (or those of a third party) and there is something about your particular situation which makes you want to object to processing on this ground. You also have the right to object where we are processing your personal information for direct marketing purposes.
- ~~Request the restriction of processing~~ of your personal information. This enables you to ask us to suspend the processing of personal information about you, for example if you want us to establish its accuracy or the reason for processing it.
- ~~Request the transfer~~ of your personal information to another party.